

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC039282: JEREMY LOOKOFSKY, et al. vs GENERAL MOTORS, LLC

06/25/2026 in Department 44

**Motion to Compel DEFENDANTS FURTHER VERIFIED RESPONSES TO REQUESTS
FOR PRODUCTION OF DOCUMENTS NOS. 1, 9, 37-81, 91-93, and 99**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

(1) Plaintiffs’ Motion to Compel Defendant’s Further Verified Responses to Requests for Production of Documents Nos. 1, 9, 37-81, 91-93, and 99

(2) Plaintiffs’ Motion to Compel Defendant’s Further Verified Responses to Special Interrogatories 41, 43, and 53

(3) Plaintiffs’ Motion to Compel Defendant’s Further Verified Responses to Form Interrogatories 12.1 and 15.1

Tentative Ruling:

The motions are GRANTED in their entirety.

I. Legal Standard: Motions to Compel Further Responses

“In the absence of contrary court order, a civil litigant's right to discovery is broad.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541 (*Williams*).) Any nonprivileged matter that is relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence is discoverable. (Code Civ. Proc., § 2017.010.) “[D]isclosure is a matter of right unless statutory or public policy considerations clearly prohibit it[.]” (*Williams, supra*, 3 Cal.5th at p. 541 [internal quotation marks and citation omitted].) The party resisting a discovery request has the burden of justifying any objections to the request. (*Id.*)

Objections, including objections based on privilege, are waived when responses are not timely served. A responding party may seek relief from such waiver via a separate motion. (Code Civ. Proc. §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Upon receipt of a discovery response that is evasive or incomplete, or to which meritless or general objections have been made, the propounding party may file a motion to compel a further response. (Code Civ. Proc., §§ 2030.300, subd. (a), 2031.310, subd. (a).) The motion must be accompanied by a meet-and-confer declaration (*Id.*, §§ 2016.040, 2030.300, subd. (b), 2031.310, subd. (b), 2033.290, subd. (b)) and a separate statement. (Cal. Rules of Court, rule 3.1345, subd. (a).) A motion to compel further responses to discovery must be noticed within 45 days of service of verified responses. (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c).)

The failure or refusal to respond to discovery and the making of meritless objections, without substantial justification, are misuses of the discovery process for which a court must impose sanctions against a party and/or the party’s attorney, unless some other circumstance makes the imposition of sanctions unjust. (Code Civ. Proc., §§ 2023.010, 223.030, subd. (a), 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d).)

III. Application

A. Timeliness of Motions

Defendant electronically served its verified responses on November 6, 2025. (Quinn Decls. in Support of Motions, ¶ 8 and Exhs. 3-4.) The forty-fifth day thereafter was Sunday, December 21, 2025. The filing deadline is thus extended to the next court day, which was Monday, December 22, 2025. (Code Civ. Proc., § 12a, subd. (a).) Accounting for electronic service (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)), the motions were required to have been noticed on or before December 24, 2025, two court days later. Since the motions were filed on December 23rd, they are timely.

B. Meet-and-Confer Efforts

Plaintiffs’ counsel describes her efforts to resolve the matter informally in her declarations. (Quinn Decls., ¶¶ 9-13 and Exhs. 5-6.) Plaintiffs have therefore complied with the Code. (Code Civ. Proc., §§ 2016.040, subd. (a), 2030.300, subd. (b), 2031.310, subd. (b), 2033.290, subd. (b).)

C. Separate Statement

Motions to compel further responses must be accompanied by a separate statement. (Cal. Rules of Court, rule 3.1345, subd. (a).) One has been filed in connection with each motion. Thus, this requirement has been met.

D. Relevance of Requests at Issues

Form interrogatories 12.1 and 15.1 are at issue. The former seeks the identification of witnesses and others with relevant knowledge. The latter seeks identification of facts, witnesses, and documents supporting Defendant's affirmative defenses. Discovery of such information, unless privileged, is expressly permitted by the Code. (Code Civ. Proc., § 2017.010.)

Special interrogatories 41, 43, and 53 are at issue. Number 41 seeks identification of all individuals involved in Defendant's investigation. Although "investigation" in number 41 is not defined, interrogatory 40 refers to the investigation of whether the subject vehicle qualified for repurchase or replacement. Number 43 seeks identification of the individuals who made the decision not to repurchase or replace the subject vehicle. Number 53 seeks a statement regarding the number of days the vehicle was out of service for warranty repairs. Like the form interrogatories at issue, the special interrogatories at issue also seek information that is expressly made discoverable by the Code. (*Ibid.*)

There are numerous document requests at issue. Request 1 seeks repair orders related to the subject vehicle. Request 9 seeks recall notice, service bulletins, and technical service bulletins related to the subject vehicle. Requests 37 through 81 are broader in scope and seek documents related to "California owners" whose vehicles have experienced the same issues identified in the repair orders related to Plaintiffs' vehicle and which are dated December 4, 2024, December 16, 2024, and January 16, 2025. The requests are limited to owners of the same year, make, and model as the subject vehicle. Requests 91 and 92 seek documents related to the investigation into whether Plaintiffs' vehicle should be repurchased or replaced, including documents provided to Teleperformance. Request 93 seeks Defendant's operating agreement with Teleperformance. Finally, request 99 seeks all "Early Warning Reporting" documents regarding "similarly situated consumers as required by 49 U.S.C. § 30166(m), including warranty claims, consumer complaints, field reports, claims involving deaths and injuries potentially related to defects, and production numbers and repurchase incidents." These documents are relevant or reasonably calculated to lead to the discovery of admissible evidence because they relate claims or defenses. (Code Civ. Proc., § 2017.010.)

E. Waiver of Objections

There is no dispute that the discovery requests were electronically served on September 24, 2025, or that verified responses were not served until November 6, 2025. (Harrison Decls. in Support of Opps., ¶¶ 3-4.) Based on the date and method of service, responses were due October

28, 2025. Because the responses were served late, Defendant waived all objections by operation of law. To the extent Defendant claims privilege based on the attorney-client privilege or work product doctrine, the Court will allow Defendant to preserve these privilege with Defendant's production of a privilege log.

Defendant specifically identified documents in its responses to special interrogatory 53 and requests for production of documents 1, 9, and 91, and the Court addresses those specifically to explain why further responses are still required as to those requests.

F. Special Interrogatory 53

This interrogatory seeks a number, specifically, the number of days the vehicle was out of service. Defendant failed to state a number and instead identified specific documents by Bates number that it asserts contain the information sought. Plaintiffs argue that the "records are what they are and say what they say" but state that they need to know "what Defendant believes in order to determine whether the lemon law presumption" should be applied. Plaintiffs further argue that the documents are not responsive. Defendant responds that the answer "is an ultimate question for the fact-finder in this case." But Defendant concedes that it "can calculate this answer using the same information as is available to Plaintiff, i.e. repair orders and warranty information GM and Plaintiff produced previously." In connection with its opposition, Defendant has produced copies of Plaintiff's initial disclosures. (Harrison Decl., ¶ 2 and Exh. 1.) Among the documents produced are the following invoices: Invoice No. C5CS863241 (repair order date 12/4/24 and invoice date 12/6/24); Invoice No. C5CS878402 (repair order date 12/16/24 and invoice date 12/26/24); and Invoice No. C5CS915942 (repair order date 1/16/25 and invoice date 1/22/25). Although the Court might infer from the documents that the vehicle was out of service for parts of 19 days, the Court declines to do so and instead requires a further response so that Plaintiff can determine what Defendant's belief is. Although interrogatory 53 does not use the word "contend," it is effectively a contention interrogatory and is therefore proper. (Code Civ. Proc., § 2030.010, subd. (b).) Defendant is thus ordered to provide a further response to number 53.

G. Requests for Production of Documents 1, 9, and 91

Defendant responded to each of these requests by asserting that it had produced responsive documents with its initial disclosures, then identifying particular documents produced by Bates number. The responses fail to comply with the Code because Defendant fails to make the statement required by section 2031.210, subdivision (a), in each response. The motion is granted as to these requests for this reason alone. Defendant must comply with section 2031.210, subdivision (a), in responding further to all other requests for production of documents.

Plaintiffs also contend that Defendant failed to produce all responsive documents. But in connection with each response, Plaintiffs have failed to specifically identify what additional documents they expect to receive that have been withheld by Defendant. Because the Bates-numbered documents actually produced are not before the Court, the Court cannot determine whether Defendant's production is responsive and only has Plaintiffs' argument to consider, as set forth in their separate statement. As such, the Court finds that Plaintiff has not

shown good cause for a further actual production of documents, such that the burden does not shift to Defendant to justify that its production is complete. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [burden shifts to party opposing discovery once good cause is shown].)

IV. Disposition

For the reasons stated herein, the motions are granted. Defendant is ordered to serve further Code-compliant responses within 20 days and to serve documents responsive to the requests for production of documents at issue, to the extent they have not been produced.

Objections, other than those based on attorney-client privilege and the work-product doctrine are waived. To the extent Defendant asserts privilege claims, it may do so only with the production of a privilege log.

As no sanctions are sought, none are awarded.

Counsel for Plaintiffs is to give notice of the Court's ruling.